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Provision of February 22, 2024
Register of provisions
n. 111 of February 22, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018, n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the complaint of March 13, 2023, Mr. XX
complained about the continued presence on the website
www.telasutela.it, managed by Ossitocina24 of Patrono
Antonella (hereinafter "Ossitocina24" or "data controller" or
"company"), of his personal data despite having expressed, on July 4,
2022, via certified email, the intention
to withdraw from the contract signed on November 18,
2021, with the aforementioned data controller. The contract had
as its subject "the sale [...] and the promotion, also on the
web, of the works of art" created by the same
interested party. The latter believed that the
termination of the contractual relationship automatically entailed
the deletion of his personal data from the aforementioned website.
Having clarified that the communication
of July 4, 2022, expressed a contractual intention and not a
specific request for the protection of personal data, the interested party,
at the Authority's invitation, subsequently submitted
a specific preliminary inquiry on March 24, 2023,
in order to obtain the deletion of said data
from the website www.telasutela.it. This request,

sent to the certified email address of Ossitocina24 indicated in the contract, went unanswered.

Also, the request for information from the Office, formulated pursuant to Article 157 of the Code on May 2, 2023 (ref. prot. n. 70496/23) and which was regularly delivered to the certified email address XX, did not receive a response. Nor was it possible to establish a telephone contact with Ossitocina24 as the numbers indicated on the website on the contact page (<https://www.telasutela.it/contatti>) yielded no useful results.

Given the silence from the data controller, and considering the impossibility of establishing contact with the same, the act to initiate the proceeding of July 18, 2023 (ref. prot. n. 109644/23) was adopted – sent on the same date via certified email and notified with the assistance of the Special Privacy Unit of the Guardia di Finanza on August 3, 2023 - with which the failure to respond to the request pursuant to Article 157 of the Code was contested. In this circumstance, the notifying body was also tasked with acquiring the information subject to the request of May 2, 2023. Therefore, within the framework of the investigation initiated against Ossitocina24, on August 3, 2023, the Special Privacy Unit of the Guardia di Finanza conducted an inspection at the legal headquarters of the company in question, as a result of which the following emerged:

- Mr. XX's data was deleted as soon as the communication to initiate the proceeding was received via certified email on July 18, 2023; this circumstance was confirmed by the access, during the inspection, to the website www.telasutela.it from which the claimant's data were no longer retrievable, and he was informed of the removal that had taken place;
- the request for deletion made by the interested party on March 24, 2023, was not responded to due to “a mere oversight”;
- “it is company policy that the data of [...] clients be deleted as soon as the mandate ceases, if canceled three months in advance, as provided in the contract in use.”

2. THE CONTESTATION

Based on the information acquired on file - considering that the failure to respond to the Guarantor had already been contested with a note of July 18, 2023 (prot. n. 109644/23) - on November 8, 2023, with act n. 150926/23, the data controller was charged, in addition to the violation of Article 157 of the Code, with the alleged violation of the following provisions of the Regulation:

- Articles 12, 17, and 21 of the Regulation for failing to respond to the request to exercise rights made by the interested party and for not having timely recorded the related opposition, considering that the aforementioned response was provided by the

data controller only after the intervention of the Guarantor;

- Article 5, paragraph 1, letters b), c), and e), of the Regulation for having retained the data of the interested party for a period of time longer than the purpose of publication pursued under the contract and in the absence of a justifying reason;

- Article 6, paragraph 1, letter a), of the Regulation for having disseminated the personal data of the claimant through the website.

****Internet in the absence of consent and after the termination of the publication contract signed with the same interested party.****

3. LEGAL ASSESSMENTS

Ossitocina24 did not submit defensive memoranda, nor did it request to be heard by the Authority, having limited itself to providing some elements in response to the request for information notified by the Guardia di Finanza, to which the declarant is liable under Article 168 of the Code.

From what has emerged in the documents, it appears that the data controller became aware of the cancellation request made by the complainant on March 24, 2023, only after receiving the communication of the initiation of the procedure on July 18, 2023, attributing the lack of response to a "mere oversight."

No justification was provided for the failure to respond to the request for information from the Office dated May 2, 2023, made pursuant to Article 157 of the Code and duly delivered to the certified email address of the company.

This negligence, which indicates inadequate management of communication channels (particularly the certified email), has resulted in an increase in procedural obligations and a slowdown in administrative action but, above all, has not guaranteed the exercise of the rights that the Regulation attributes to the interested parties. Nor did the data controller promptly inform the complainant of the deletion of their personal data.

Article 12, paragraph 2, of the Regulation requires the data controller to facilitate the exercise of rights and, according to the subsequent paragraph 3, to respond to the interested party within a reasonable time and, at the latest, within 30 days. This response was provided by the data controller only on August 3, 2023, during the acquisition of information by the Guardia di Finanza and after the communication of the initiation of the procedure before the Guarantor.

The deletion of Mr. XX's personal data from the website also occurred only after the receipt of the contestation, pursuant to Article 166, paragraph 5, of the Code, and in violation, moreover, of the contractual agreements under which, as represented during the inspection by the company itself, such deletion is simultaneous with the termination of the mandate. Mr. XX's profile, however, was found on the website www.telasutela.it even after a year from the request to withdraw from the contract made on July 4, 2022 (as per a verification carried out by the Office on July 17, 2023, of which screen prints were obtained) and, therefore, in the absence of an appropriate legal basis. Furthermore, considering that these data were retained, without any apparent reason, for over a year from the termination of the contract, the processing in question is in conflict with the principles of purpose, minimization, and limitation.

For these reasons, it is deemed necessary to confirm the violation of the provisions contained in Articles 5, paragraph 1, letters b), c), and e), 6, paragraph 1, letter a), 12, 17, and 21 of the Regulation. Moreover, the data controller failed to respond to the Guarantor's request of May 2, 2023, resulting in an aggravation of the procedure and necessitating the assignment of the Special Privacy Unit of the Guardia di Finanza to obtain the information necessary to complete the investigation. It also did not provide explanations regarding the lack of response despite the precise request from the Office.

Furthermore, the certified email address of Ossitocina24 appeared to be operational, considering that the requests for information and the subsequent act of contestation received acceptance and delivery confirmations that completed the notification of the acts. It is therefore believed that the violation of Article 157 of the Code is fulfilled.

4. CONCLUSIONS

Having established the unlawfulness of the aforementioned conduct of Ossitocina24, it is necessary to:

- a) pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the adoption of appropriate technical and organizational measures to provide a suitable response to requests for the exercise of the rights of the interested parties through the correct management of communication channels and, in particular, the certified email address designated for this purpose (pursuant to Articles 12 and 15 of the Regulation);
- b) pursuant to Articles 58, paragraph 2, letter i) and 83, paragraph 5, of the Regulation, regarding the treatments already carried out, it is believed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83, paragraph 5, of the Regulation.

5. ORDER FOR THE IMPOSITION OF AN ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, several provisions of the Regulation and the Code have been violated in relation to connected treatments carried out by Ossitocina24, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which "if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," with the consequent application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the determination of the amount of the sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

As circumstances to be considered in this specific case, it must be considered, under the...

Profile of the aggravating factors:

- 1) The subjective dimension of the conduct, to be considered severely negligent, given that the holder acted with disregard for the initial request for cancellation from the complainant, to which he did not pay due attention (art. 83, par. 2, lett. b of the Regulation);
- 2) The degree of cooperation with the Authority, as the company did not take into account the consequences that could arise from the lack of response to the request from the Guarantor, even in terms of the complete instruction of the procedure regarding the complaint, nor did it provide explanations regarding its silence; the conduct exhibited during the described visit by the appointed verification body for notification also demonstrated a general disregard for the Authority's duties (art. 83, par. 2, lett. f of the Regulation).

As mitigating factors, the following should be considered:

- 1) The isolated nature of the conduct, given that the procedure in question arose from a single complaint (art. 83, par. 2, lett. a of the Regulation);
- 2) The deletion of the complainant's personal data, albeit belatedly and after the intervention of the Authority, such that it can be considered that the effects of the complained conduct have ceased (art. 83, par. 2, lett. c of the Regulation);
- 3) The absence of previous proceedings initiated against the holder (art. 83, par. 2, lett. e of the Regulation);
- 4) The nature of the data processed, consisting of common data, specifically the name and surname of the complainant (art. 83, par. 2, lett. g of the Regulation);
- 5) The overall assessment of the economic capacity of Ossitocina24, with particular reference to the "Income Model for Individuals," obtained by self-employed workers with VAT, for the tax period 2022 (art. 83, par. 2, lett. k of the Regulation).

In a comprehensive perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, the aforementioned criteria should be prudently evaluated, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the complex of the elements mentioned above - the administrative sanction of a payment of €5,000.00 (five thousand) should be applied to Ossitocina24,

which is equal to 0.025% of the maximum administrative fine of €20 million, and, due to the aggravating factors identified, the additional sanction of the full publication of this provision on the Guarantor's website as provided for by art. 166, paragraph 7 of the Code and by art. 16 of the Guarantor's regulation no. 1/2019.

It is finally noted that the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, exist for the annotation of the violations identified herein in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares unlawful, in the terms set out in the reasoning, the processing carried out by Ossitocina24 of Patrono Antonella, with registered office in Bari, via Roccaporena 25, VAT number 08116950729, and consequently:

a) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders the adoption of appropriate technical and organizational measures to provide a suitable response to requests for the exercise of the rights of the data subjects through the proper management of communication channels and, in particular, of the certified email address designated for the relevant handling (ex arts. 12 and 15 of the Regulation);

b) pursuant to art. 157 of the Code, orders the company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives taken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by art. 83, par. 5, of the Regulation.

ORDERS

Ossitocina24 of Patrono Antonella, in the person of its legal representative, to pay the sum of €5,000.00 (five thousand) as an administrative monetary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned company, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €5,000.00 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

as an additional sanction, pursuant to art. 166, paragraph 7, of the Code and art. 16 of the Guarantor's Regulation no. 1/2019, the publication on the Guarantor's website of this provision and, pursuant to art. 17 of the Guarantor's Regulation no. 1/2019, the annotation in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree of September 1, 2011, no. 150, against this provision an appeal may be made to the ordinary judicial authority, with a petition filed with the ordinary court of the place where the holder of the personal data processing resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the applicant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei